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From Covenant to Constitution in American Political Thought

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If we were to pick up any book that proclaimed itself to be about American constitutional history, it would probably exhibit two traits characteristic of such books. First, it would focus almost entirely upon the national Constitution. Second, it would examine only what has happened since 1789. Any discussion of where that Constitution comes from is likely to be limited to a few remarks about the Magna Carta, the English constitution, and probably the Declaration of Independence.[1] This attitude toward the colonial portion of American political thought is so prevalent, that one writer recently remarked: "For theoretical as well as practical purposes the origin of the American track can, therefore, be assumed to begin in 1776. The thinkers, issues, and events prior to 1776 have never really had a central impact on the conduct of American politics."[2]

This study proceeds from an entirely different set of premises. If we are ever to produce a complete and accurate American constitutional history, we must recognize that without the state constitutions in force in 1789 the national Constitution is an incomplete text. They must all be read together.[3] These state constitutions together contain and embody a

[1] Notable exceptions to this charge, and thus virtually the only works to examine the covenant and/or colonial documentary background to American constitutionalism are: Alfred H. Kelly and Winfred A. Harbison, *The American Constitution: Its Origin and Development,* 5th ed. (New York: W. W. Norton and Co., 1976); Breckinridge Long, *Genesis of the Constitution of the United States of America* (New York: The Macmillan Company, 1926); Andrew C. McLaughlin, *The Foundations of American Constitutionalism* (New York: The New York University Press, 1932); and Hannis Taylor, *The Origin and Growth of the American Constitution* (New York: Houghton Mifflin Company, 1911). However, the four together do not begin to provide a complete or sophisticated discussion of American Constitutional origins, at least in part because a complete list of colonial documents is not developed. Also, there is no analysis of the terms used in these colonial documents.

[2] Gordon Lloyd, "Textbooks in American Political Theory," *The Political Science Reviewer* 5 (Fall 1975) :314.

[3] This point is developed in depth by Donald S. Lutz, "The Founding of Popular Government in America: The United States Constitution as an Incomplete Text" (Paper read at the 1980 A.P.S.A. convention).

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coherent political theory which is, in important respects, at variance with Federalist theory which underlies the United States Constitution.[4] Nevertheless, the idea for a written national constitution, as well as the basic elements and institutions within it, come from the state documents. Furthermore, American constitutional history is the story of a competitive interaction between Federalist political theory and the Whig theory informing the state constitutions.

The state constitutions themselves did not simply spring into being, but were the culmination of a long development. For the better part of two centuries, Americans wrote and evolved protoconstitutions containing all the elements later to be found in state and national constitutions.[5] This evolution was essentially an interplay between the problems arising from the environment in which Americans found themselves, and European ideas that were selectively appropriated to help solve these problems. The beginning of American constitutional history, then, must be sought in those documents establishing local self-government on American shores during the early seventeenth century.

Although some historians in recent years have tended to downplay covenant theology and its impact on American political thinking, there is also the danger of overestimating its influence since no one idea or tradition monopolized American thinking.[6] Nevertheless, Americans were considerably fascinated by the idea of the Jewish people, if not by the Jewish people themselves. From the first settlements until well into the nineteenth century, Americans often viewed themselves as modern Jews and continually returned to the Bible for their mythic roots.[7] The

[4]For a comprehensive analysis of the early state constitutions see Donald S. Lutz, *Popular Consent and Popular Control: Whig Political Theory in the Early State Constitutions* (Baton Rouge: Louisiana State University Press, 1980).

[5]The basic stance taken in this article, that American political documents of the late eighteenth century are essentially elaborations upon seventeenth century colonial documents and a differentiation of symbols contained within these earlier documents, is an adaptation of the thesis in a book by Willmoore Kendall and George Carey, *The Basic Symbols of the American Political Tradition* (Baton Rouge: Louisiana State University Press, 1970).

[6]A summary and analysis of the various intellectual traditions appropriated by American political thinkers can be found in Bernard Bailyn, *The Ideological Origins of the American Revolution* (Cambridge: Harvard University Press, 1967). For discussion of the connection between civil and religious covenants in America see Perry Miller, *The New England Mind: The Seventeenth Century* (Boston: Beacon Press, 1961), pp. 398-431, 464-78; Perry Miller, *The New England Mind: From Colony to Province* (Boston: Beacon Press, 1966), pp. 21-28, 68-78; Herbert W. Schneider, *The Puritan Mind* (Ann Arbor: *Univ. of Michigan,* reprint, 1966), ch. 1; and Harry M. Ward, *Statism in Plymouth Colony* (Port Washington, N. Y.: Kennikat Press, 1972), pp. 3-14, 52-63.

[7]One need only consult any of the election day sermons, Thanksgiving Day sermons, or sermons given on the opening day of the legislatures of Massachusetts, Connecticut, Rhode Island, or New Hampshire between 1750 and 1805. Nine representative sermons are reproduced in John Wingate Thornton, ed., *The Pulpit of the American Revolution* (New York: Burt Franklin, reprint, 1970). There was a consistent effort to link American

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fact that the Whig political theory underlying the early state constitutions has many similarities with seventeenth century political covenants requires that we look carefully at American protoconstitutions and their development for an estimate of the impact of covenant theory.[8]

BASIC ELEMENTS OF STATE CONSTITUTIONS

Before beginning our search for the impact of covenant ideas on constitutions in America, it is necessary to outline the various elements that are, in fact, to be found there. Put most simply and directly, the early state constitutions all contain the following foundation elements: (1) an explanation of why the document is needed; (2) the creation of a people; (3) the creation of a government; (4) a self-definition of themselves as a people, their common values, rights, and interests; and (5) the specification of a form of government, which includes an outline of its institutions and the fundamental principles underlying them. Each of these elements needs some elaboration.

It is a natural human inclination to provide reasons for one's actions, and those writing the state constitutions were no exception. They usually provided a brief explanation for why such a document was needed—the Continental Congress advised them to write a constitution, the perfidy of the king drove them to write a new instrument of government, etc. Often these explanations take the form of a brief history lesson; sometimes they are only a general statement of problems or needs. Regardless, these statements amount to a preamble, setting out the general goals or purposes of the constitution. Sometimes the explanation of why the document is needed is not found in the preamble but elsewhere. No matter where it is found and how long it is, the formula is straightforward—there is a need or problem, the solution is a new government, and the new government will solve the problem or need by taking us to a desired goal or state of affairs. This is what the formula

republican government with the Jewish biblical experience, and to cast America as the modern Jewish nation. For an explicit discussion of the impact of this Calvinist appropriation of covenant theology see Cushing Strout, *The New Heavens and New Earth: Political Religion in America* (New York: Harper and Row, 1974), esp. ch. 4. Many of the colonial documents themselves bear witness to this biblical link. For example, The General Laws and Liberties of Massachusetts, 1647, begins, "So soon as God had set up political government among his people Israel, he gave them a body of laws for judgment both in civil and criminal causes. These were brief and fundamental principles, yet withal so full and comprehensive as out of them clear deductions were to be drawn to all particular cases in future times . . . This has been so small privilege and advantage to us in New England that our churches and civil state have been planted and grown up, like twins, together like that of Israel in the wilderness . . ." The comparison between New England and Israel can also be found drawn out at length in the famous forward to the 1658 revision of the 1636 Pilgrim Code of Law.

[8] For a characterization of the Jewish political tradition, especially the role of covenant theory, see Daniel J. Elazar, "Covenant as the Basis of the Jewish Political Tradition," *The Jewish Journal of Sociology* 20 (June 1978) :5-37. See also, Delbert R. Hillers, *Covenant: The History of a Biblical Idea* (Baltimore: The Johns Hopkins University Press, 1969).

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looks like when it is completely unfolded. In a given document, the problem or need may be implicit in the description of the state of affairs desired, or the desired state of affairs may be implicit in the description of the problems the king made for us, etc. There are many stylistic variations, but few of the early constitutions fail to provide this foundation element.

The writers of these constitutions invariably look upon them as being, in part, social compacts. Put another way, a constitution creates a new people, a new society. They also create a new government, and it is easy to see the dead hand of John Locke here, telling us that there are two contracts: the first, unanimous one to create a society, and the second creating a government through the action of a majority.[9] If anything, Locke's impact has been overestimated in this regard. The constitutions, while containing both agreements as their second and third elements, nevertheless, place them in the same document as if they are not separable in practice. Nor do the constitutions distinguish between unanimity for the social compact and majority rule for the political compact. Also, the term "compact" is consistently used, not "contract," a distinction which we will see is crucial. It must also be said that the formula for combining social and political compacts in the same document, indeed the form for all of the foundation elements, can be found in colonial documents written before Locke was born.

The important point to remember here is that Americans were quite aware that one did not create government in a vacuum. Government is instituted by a people in order to reach collective decisions, and before you can have a government you must have a people. The distinction is a logical, not a temporal one. Both compacts can be created at the same time, but the distinction is a powerful reminder that government is the servant of the people. More precisely, it *is* the people, but the people acting in a certain mode or a certain capacity.

Sometimes the constitution will explicitly state that it is creating a people. Other times the people will be defined in terms of those who agree to take a specific oath provided in the document, or as all those inhabiting a geographical area defined in the constitution, or, quite possibly, by referring to a people already in existence as being reaffirmed in a new existence under a new agreement. The last formula would tend to make a constitution more of an organic act.

The fourth foundation element—the self-definition of the people in terms of values, rights, and interests—is usually overlooked because the concept is not understood. When we look at a bill of rights, we have a strong tendency to view it in the legalistic manner to which we have become accustomed in dealing with our national Bill of Rights. In fact,

[9] See John Locke, *The Second Treatise of Government* (Indianapolis: The Bobbs-Merrill Co., 1952), esp. section 96, p. 55.

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bills of rights in state constitutions were not viewed primarily as limits upon government, although they did serve this function somewhat. How is it possible to systematically limit a government, a legislature, by admonishing them with "oughts" and "shoulds" in constitutions often written by the legislature, usually approved by them, and with few exceptions subject to amendment by the legislature?[10] Furthermore, Whig theory used direct, continuous consent to control the legislature rather than "paper barriers." The purpose of these bills of rights, then, was a grander one. They were attempts by "the people" created elsewhere in the constitution to define the kind of people they were or wished to become. Bills of rights, as part of the self-definition element in constitutions, were supplemented by other statements, such as those urging recurrence to general principles of frugality, moderation, etc. Reading bills of rights and these other theoretical statements in this new light, you can see a people saying something along the following lines:

> Here, in public, we declare the kind of people we are, as well as the kind of people we hope to become. We hereby agree to treat each other in the manner described, we expect all citizens to strive to inculcate these attitudes in their children, and to set examples for our neighbors with our own actions. We also expect government to make laws consistent with these values, rights, and interests, and to impinge upon any of them only with the greatest of care and for the most serious reasons.

As we read through these statements of self-definition, we find that constitution after constitution defines a religious people, a free people bound only by their own consent and determined to retain that freedom, a people devoted to calm, deliberative processes for collective decision making, a people dedicated to treating each other as fairly as possible, a people determined to develop themselves as completely as possible through public education and the encouragement of civic and moral virtues, and a people committed to living together as a community—which meant subordinating private interest to the good of the community.

The final foundation element we will identify is the one usually associated with constitutions, and the one most properly described at the time by the term "constitution"—the outline of a form of government, that is, the specification of political institutions and fundamental principles of organization. Most of this fifth element tended to be organic in nature, since it often was the recodification of institutions already in use in the respective states. There were some innovations, such as the

[10] For further discussion of the higher law content found in the early state constitutions see Donald S. Lutz, *Popular Consent and Popular Control,* esp. pp. 60-68. For a broader view of higher law versus legislative supremacy see J. W. Gough, *Fundamental Law in English Constitutional History* (Oxford: Clarendon Press, 1955), esp. ch. XI and XII.

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Council of Censors in Pennsylvania and Vermont, but it consists mostly of tried and true Whig institutions. A careful reading will also show that most government is still left at the local level. Very few county officials are created or mentioned, and local government is left intact to carry on the bulk of government as it always had in America. In this regard, the content of the fifth foundation element creates state constitutions that are themselves federative documents, federations of towns and counties.

Some might wonder that the five "elements" do not include some things we usually associate with a constitution—the definition of citizenship, the placement of sovereignty, the establishment of a ruling regime, the distribution of and limits upon governmental power. These "functions" of a constitution are in fact found in, and are the result of, the fifth element. To the extent that any of these functions are not provided for, the fifth element is not complete.

It is time to look at the colonial documents leading up to these state constitutions, and to analyze the relationship of the foundation elements they contain to covenant theory. The first step in this analysis is to define and characterize the prominent terms used to describe these elements in colonial documents.

A PLETHORA OF TERMS

It is said that humans have a tendency to develop a multiplicity of terms for things that are important to them. Thus, for example, Eskimos are said to have many words for snow. If this is the case, then English-speaking people of the seventeenth and eighteenth centuries must have considered political agreements to be of considerable importance as they regularly used over a dozen different terms, sometimes interchangeably, but often to distinguish subtleties which they considered important. We will need to examine some of these linguistic alternatives, partly in order to comprehend what the issues were, and partly because the general words we have inherited were not used to describe the documents as written. For example, when we come to examine some of the eighty-six constitution-like documents written by American colonists before 1722, we will discover that the word "covenant" is rarely used to describe a document, even though a number of them were in fact understood to be covenants and had a covenant form internally. Covenant was too broad a term, and the authors often preferred a more restrictive, precise title.

The same is true for "compact." The term is not used in any of the titles for colonial documents. The Mayflower Compact was actually not so named until 1793, and was known by the citizens of Plymouth as the "Plymouth combination," or the "agreement between the settlers at New Plymouth."[11] To make sense out of these items, then, we will first

[11] Ward, *Statism in Plymouth Colony,* p. 4.

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need to define with some precision the broad categorial terms of covenant, compact, contract, and organic act; and then recover the understandings in use at the time for charter, constitution, patent, agreement, frame, combination, ordinance, and fundamentals. Since the colonists were not always consistent in using these terms, it will not be enough to conclude that, for example, since an "agreement" definitionally was a form of compact, that all agreements were therefore compacts.[12] Once some order is brought to the terms, the documents themselves will have to be analyzed for the elements they contain, their formal construction, and the operative terms they use to describe what they are doing.

A contract usually implied an agreement with mutual responsibilities on a specific matter.[13] A contract carried with it a restricted commitment such as in a business matter or a marriage, and involved relatively small groups of people. The contract could be enforced by law, but did not itself have the status of law.

A compact, on the other hand, was a mutual agreement or understanding that was more in the nature of a standing rule that, if it did not always have the status of a law, often had a similar effect. A compact implied an agreement that affected the entire community in some way, or relations between communities. The word had the root meaning of "knitting together" or "bringing the component parts closely and firmly into a whole." A compact, therefore, was an agreement creating something that we would today recognize as a community. Because a compact was not as specific as a contract, and more like a settled rule than an agreement with specific responsibilities, we do not find talk of a marriage compact or a Mayflower Contract.

A covenant could be viewed as having two distinct though related meanings. As a legal term in England, it referred to a formal agreement with legal validity made under the seal of the crown. This denoted an

[12]That the colonists were not always consistent does not mean that the distinctions were not usually made. For example, when discussing the colonial charters, the colonists often referred to them as "contracts," but almost never as compacts or covenants. Because we no longer use compacts or covenants as political instruments, we often use the words interchangeably with "contracts," and interpret earlier writers as also using them similarly. This has marred our understanding of the arguments used by American colonists. For example, an otherwise excellent analysis by John Phillip Reid, "'In Our Contracted Sphere',: The Constitutional Contract, The Stamp Act Crisis, and the Coming of the American Revolution," *Columbia Law Review* 76 (January-May, 1976) :21-47, illustrates what can happen. He uses "compact," "contract," and sometimes "covenant" as equivalent terms not noticing that in the many quotes he cites from the 1700s the few times that "contract" is used is when discussing a colonial charter. As we shall see, these charters were a type of contract. Otherwise, he uses the word "contract" when discussing many passages where only the word "compact" is used, and once one recognizes that the two terms had distinctly different connotations the entire line of argument takes on different implications.

[13]These formal definitions have been reconstructed from the Oxford English Dictionary, and the documents themselves as a check on usage.

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agreement of a serious nature, witnessed by the highest authority. The religious counterpart to this secular covenant was any agreement established or secured by God. The formal agreement, made and subscribed to by members of a congregational church in order to constitute themselves a distinct religious community, had God as the witness and securer of the agreement. A religious covenant thus was essentially an oath, and if it established a political community, political obligation was secured by the oath, rather than merely resting upon the fact of consent having been given. Note that both the secular and religious meanings are related, in that each is characterized by being witnessed and therefore secured by the highest relevant authority. Presumably any compact with both God and the crown as securer would be simultaneously a civil and religious covenant.

There is much more that is implied by a covenant, but for now we wish to distinguish and relate the basic definitions of covenant, compact, and contract as used in the seventeenth and eighteenth centuries.[14] A contract was a restricted agreement between relatively small groups of people that did not necessarily have the status of law. A compact was an agreement between a large group of people creating a new community based upon their own consent. A covenant was an agreement between a large group of people which created a new group of people through their own consent, and was made legal by being sanctioned or witnessed by the highest relevant authority, religious or civil.

Even with this restricted comparison, a couple of things become apparent. First of all, calling Locke a "contract theorist" would have been considered a misnomer by Americans. He was more properly a "compact theorist." Secondly, the relationship between a covenant and a compact was a complex one. Both were based upon the consent of those taking part. Both created a new community. Both implied a relationship that was stronger, deeper, and more comprehensive than that established by a contract.

However, a compact required simply the consent of those taking part, while a covenant required sanction by the highest authority as well. In this regard compact is the more modern of the two concepts, while covenant was the more natural term to use in a religious context or in a medieval context, where the authority hierarchy was well defined and

[14]The description of a covenant in legal terms necessarily results in presenting a very attenuated sense of what the term implied. A covenant was much more than merely a legal form. It created a community committed to moving well beyond legal relationships as the basis for interaction. For an excellent summary of the full meaning of covenants in Jewish political thought, as well as an introduction to the broader literature, see Elazer "Covenant as the Basis of the Jewish Political Tradition." There is an enormous literature describing the role and impact of covenant theology on American history and politics, but perhaps the single best volume for conveying precisely the richness of the covenant idea for colonial Americans is Richard P. Gildrie, *Salem, Massachusetts, 1626-1683: A Covenant Community* (Charlottesville: University Press of Virginia, 1972).

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had a clear apex.[15] A compact could be turned into a covenant simply by calling upon God to witness the agreement, which, by the way, turned consenting to the agreement into an oath. If a people found themselves in a situation where a mutual agreement had to be drawn up, and where it was impossible to obtain the official seal of the king in order to give the document legal status, the easiest thing to do was call upon God as a witness to bind those signing until the king's legal sanction could be obtained. If, for some reason, a people reached a mutual agreement that was covenant-like but chose to call upon neither God nor the king, they must have, for some reason, considered themselves completely competent to establish the document's legality. This last instance would be one where legality was viewed as resting upon the authority of the people, indicating an understanding of popular sovereignty. A compact was just such an agreement, one resting only upon the consent of those participating. For this reason Blackstone could say: "A compact is a promise proceeding from us, law is a command directed to us."[16]

An agreement between God and His chosen people, then, was a covenant. The judicious Hooker refers to "Christ's own compact solemnly made with his church."[17] While this is not the Jewish covenant, the Protestants writing the colonial documents in question viewed it as equivalent.[18] It was certainly equivalent in the sense that calling upon God to witness a civil union not only turned a compact into a covenant, it also indicated an accord with the broader covenant in the Bible between God and His chosen people. Giving one's consent to join a civil community with this kind of covenant was in part an act of religious commitment, and elections to choose "the elect" were also acts of consent with religious overtones.

Consent becomes the instrument for establishing authority in the community and for expressing the sovereignty of God. God transmits his sovereignty to the people through the broader covenant, and they in turn convey His sovereignty to the rulers on the basis of the specific

[15] See Otto Gierke, *Political Theories of the Middle Age* (Cambridge: The University Press, 1900), esp. sections IX and X.

[16] Blackstone, *Commentaries,* I, p. 45 (1765).

[17] Richard Hooker, *Of the Laws of Ecclesiastical Polity* (Everyman's Library, 1954), book V, section 15, 1xii.

[18] In addition to the works cited in footnotes six, eight, and fourteen anyone interested in the Protestant notion of covenant and its connection with the Hebraic concept should consult: Champlin Burrage, *The Church Covenant Idea: Its Origin and Development* (Philadelphia, 1904); Peter Ymen DeJong, *The Covenant Idea in New England Theology, 1620-1847* (Grand Rapids: W. B. Erdmans, 1964); E. Brooks Holifield, *The Covenant Sealed: The Development of Puritan Sacramental Theology in Old and New England: 1570-1720* (New Haven: Yale University Press, 1974); Abraham I. Katsh, "Hebraic Foundations of American Democracy," in *The Hebrew Impact on Western Civilization,* ed. Dagobert D. Runes (New York: Citadel Press, 1965), p. 1061; and *Encyclopedia Brittanica,* 15th ed., s.v. "Covenant."

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covenant creating the civil community. The people's consent is the instrument for linking God with the rulers, whose authority then is viewed as sanctioned by Him, but because this authority comes through the people, the rulers are beholding to God through *them*. This, the basis of popular sovereignty, had been developed both by Protestant thinkers and by Catholic theologians independently.[19]

Given these characterizations, it can be seen that a covenant is simultaneously a compact as it contains everything essential to a compact. A compact, however, is not simultaneously a covenant, because it lacks the explicit link with the higher authority, even though the idea and form for a compact are derived from covenants, and the kind of community established is similar enough so that one could call a compact a near-covenant. Furthermore, there are circumstances in which an apparent compact is really a covenant in the complete sense. For example, suppose a people form a society under a covenant in either or both God's name and the king's name. They, then later, form a government for this society in a document without mentioning any authority other than themselves as a people. Since the first document that formed them as a people also automatically establishes them as expressing the higher authority through their own popular sovereignty, all subsequent documents by that people could be considered covenants as well, since the link with the higher authority is understood. They, as a people, could not mediately exercise sovereignty unless it had been sanctioned by the higher authority.

It is perfectly possible for a contract to be elevated to compact or covenant status. For example, the king could place his seal upon a contract, perhaps charters come most easily to mind, or a marriage contract could be witnessed by God in an oath. However, such a document would imply quite a different kind of community. Since all the details of the relationship would be spelled out, the result would be less a community—where the partners are required to go beyond the legally defined relationship to fully develop the relationship—and more one where the partners are minimally required to fulfill the obligations specifically mentioned. Such a contractually-based compact or covenant would, first of all, not be a true covenant as understood in the Jewish tradition, and secondly, it would be inclined toward legalistic wrangling over the meaning and intent of specific words and phrases.[20] The emphasis upon the letter rather than upon the spirit of the agreement would destroy community as implied by covenant or compact, and result in something less—an association for specific, limited ends. True cove-

[19] Gierke, *Political Theories of the Middle Age,* pp. 83-90 and associated footnotes. See also Sanford A. Lakoff, *Equality in Political Philosophy* (Boston: Beacon Press, 1964), esp. ch. 3.

[20] Elazar, "Covenant as the Basis of the Jewish Political Tradition," p. 6.

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nants and compacts are thus communitarian oriented, while contractual variants are inclined to be legalistic. One manifestation of the latter would be the tendency of a people to produce longer and longer specifications for the agreement which are more and more precise and limited. This, however, should not be pushed too far as an identifying characteristic of a contractual society, since there is another, noncontractual form of agreement that may resemble it superficially.

The other possible way to view an agreement is as an "organic act." An organic act is one that codifies and celebrates an agreement or set of agreements made through the years by a community. In this way, a "common law," comprised of legislative and judicial decisions made over a number of years, can be codified, simplified, and celebrated in dramatic form, thereby also renewing the consent-based oath upon which obligation to the community rests. The early state constitutions adopted in 1776 could be viewed as "organic compacts" of this type as they usually summarized what the colonists of each state had evolved over the previous one hundred and fifty years. In the case of Connecticut and Rhode Island, the colonial charters were formally re-adopted as constitutions—charters which had been essentially written by the colonists. Massachusetts did not adopt anything new but continued to live under the 1725 charter as a continuous community.

We now have the basic definitions for the analytic categories of religious covenant, civil covenant, mixed or combined religious-civil covenant, compact, contract, and organic act. As was noted earlier, these terms were generally not used to describe colonial documents of foundation and self-definition, at least not by those writing them. Therefore, before moving to a direct examination of the documents, we need to provide brief characterizations of the terms that *were* most prominently used—agreement, combination, frame, fundamentals, ordinance, patent, charter, and constitution.

An "agreement" in the formal, political sense referred to an arrangement between two or more persons as to a course of action, a mutual understanding, or a common goal. The term was interchangeable with covenant and compact. Treaties were sometimes termed agreements. However, while an agreement was legally binding on the parties making it, the term more properly implied a sense of harmony or concord that transcended mere legalism. To refer to a treaty as an agreement meant at the very least that there was no dissention, but it usually implied more—a level of mutual pleasure that approached atonement, whether in the sense of reconciliation or of propitiation. An agreement, then, at least during the period in question, was far more than a contract. It clearly suggested a relationship that moved beyond the letter of the agreement toward mutual support and pleasure, something close to the "knitting together" implied by a compact or the spirit of community carried by a covenant.

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A "combination" was viewed as a bringing together of two or more entities into a whole. The banding together or union of persons was usually for the prosecution of some common, broad objective. The term was often used interchangeably with agreement and compact, and sometimes with alliance and treaty. As a legal term it had neither consistent nor widespread use, but American colonists were quite consistent in using it as the equivalent of agreement as just outlined.

During the era in question, a "frame" referred to an established order, plan, scheme, or system, especially of government. It strongly implied a definite form, regular procedure, order, and regularity. It also implied an adapted or adjusted condition, in the sense of changing to take into account new factors or conditions affecting the older form, plan, or system, while not rejecting that older one. Thus, a frame tended not to be a document of founding as much as it was one of refounding, and hence was similar to an organic act.

The use of "fundamentals," as in New Haven Fundamentals, implied the foundation or base upon which something is built. It was used primarily to refer to immaterial rather than physical things, and thus, was used in describing leading principles, rules, laws, or articles which served as the groundwork for a political system. Such a statement of principles might be an addition to a covenant or compact, or it might constitute the agreement itself.

An "ordinance" usually referred to an authoritative command, although in a more restricted sense, narrower scope, and less permanent nature than a law or statute. The term was sometimes used to refer to the founding or instituting of something, but in the sense of making conformable to order, rule, or custom—as in placing or arranging in proper sequence or proper relative position. It would not be improper to view an ordinance as sometimes attempting to establish "orders" of people according to class, merit, ranking, status, importance, duties, rights, etc. As with fundamentals, political ordinances could be covenants, compacts, contracts, or something else depending upon the content. The words "ordain" and "order" used as operative words in a document legally produced an ordinance.

A "patent," as in letters-patent, had the root meaning of a public letter or document, usually from a sovereign or person in authority. It had a variety of uses (e.g. to put on record some contract, to command or authorize something to be done, to confer some right, privilege, title, property, or office). Whatever its use, it usually implied a monopoly of some sort, as in exclusiveness of use. Obviously a patent was related to a contract, but it was also related to a law in that it was handed down by some authority.

The word "charter," is derived from the Latin word meaning a leaf of paper, a writing, a document. Often it was a legal document or deed written upon a single piece of paper by which grants, sessions, contracts,

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and other transactions were confirmed or ratified. It was also used to refer to a written document delivered by the sovereign or legislature to grant privileges to, or recognize the rights of, an entire people, a certain class, or specific individuals. In his *Leviathan,* Hobbes says that charters are not laws but exemptions from the laws. Charters were also used to grant pardon, and create or incorporate boroughs, universities, companies or other corporations. They were a written instrument or contract applied especially to documents or deeds relating to the conveyance of property. The word "charter" was also used as a linguistic substitute for privilege, immunity, or publicly conceded right. To say that something was chartered was to say that it was founded, privileged, or protected. Charters and letters-patent were very similar, although the latter term was broader in that it could refer to any authoritative document. A charter was invariably a patent, while a patent was not necessarily a charter. Charter was also closely related to contract as a legal term in that it effectively constituted a contract between the authority granting it and the person(s) to whom it was granted. However, unlike a simple contract, a charter often included so many statements of a general nature that it transcended the notion of a contract. A contract, for example, would not be an appropriate description for a document which says something like ". . . and the proprietors shall establish a government whereby differences among the planters may be settled." The peculiarity of a charter, then, was that it often contained strong contractual elements linked to many or most of what we would recognize as foundation elements of a broader nature.

Although rarely used to describe early colonial documents, the word "constitution" is worth examining in order to compare its usage with some of the other terms we are examining. Related to the term "constituent," which refers to that which makes a thing what it is in the sense of being formative, essential, characteristic, or distinctive; it is more immediately drawn from "constitute," which means to establish, ordain, or appoint in the sense of providing legal form and status. Constitution, proper, referred to the action of making, establishing, decreeing, or ordaining something, usually in the sense of having been made by a superior civil or ecclesiastical authority.

Additionally, it had been used historically to denote limitations. For example, the Constitutions of Clarendon in England, a set of propositions drawn up at the Council of Clarendon in 1164, defined the limits of civil and ecclesiastical jurisdiction. It had also been used to describe the mode in which a state was organized, especially as to the location of sovereign power; as well as to describe the fundamental principles according to which a nation, state, or body politic was organized and governed. For example, there was the declaration of the Estates of Scotland (1689): "Whereas King James the Seventh did by the advice of wicked and evil counsellors invade the fundamental constitution of the

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kingdom, and altered it from a limited monarchy to an arbitrary despotic power . . ."; or Lord Viscount Bolingbroke's definition, "By Constitution we mean, whenever we speak with propriety and exactness, that assemblage of laws, institutions, and customs, derived from certain fixed principles of reason . . . that compose the general system, according to which the community hath agreed to be governed."[21]

In summary, we find the word constitution associated with making or establishing something, giving it legal status, describing the mode of organization, locating sovereignty, establishing limits, and describing fundamental principles. It was often used in association with "law," "statutes," "ordinances," "frame," and "fundamentals." Although the usage of the word is familiar to our ears, the various components had not yet been brought together in any complete fashion. Also, the term "constitution" was not used to refer to a specific document as we are inclined to do today. The English had developed the concept of a written constitution, but the writing was scattered over thousands of documents, and no one was quite sure which documents should be included. When Americans finally brought all the elements together in single documents in 1776, the term constitution was to include far more than was outlined by Bolingbroke. Indeed, the early state constitutions would derive their elements from agreements and combinations which were true compacts and covenants, as well as from frames, fundamentals, and ordinances.

EARLY FOUNDING DOCUMENTS IN AMERICA

From the very beginning American colonists were more than mere objects of legislation. Partly out of necessity and partly out of preference they quickly become a self-legislating people. Despite the primitive conditions, the English penchant for record keeping resulted in most of the documents that interest us being preserved. These documents form the basis for our analysis, and can be found reproduced in the Appendix arranged in four lists. The first list contains documents of formation and self-definition written by colonists, whether officially approved in England or not. The second contains documents of foundation written in England (or on the continent) for the colonies. The third lists the various proposals for uniting the colonies, whether written in England or the colonies, and whether approved or not. This list is included for the sake of historical completeness, but will not be the basis for any analysis here. The fourth list is of the relevant state constitutions.

One cannot help but be impressed by the number and variety of founding documents aimed at or written by the few thousands of people on American shores. However, the documents do fall into several distin-

[21] Lord Viscount Bolingbroke, *On Parties* (1735), p. 108.

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guishable types. Some created a people, in the sense of a society, such as the Salem Agreement (1634).[22] Others created a government, such as the Agreement of the Settlers at Exeter (1639). Still others were documents of self-definition listing the values, rights, and interests of the community. The Massachusetts Body of Liberties (1641) is the most well known example. Finally, there are documents which outline and establish a particular form of government, such as the Pilgrim Code of Law (1636).[23]

These four kinds of founding acts—founding a people, founding a government, providing a self-definition, and establishing a specific form of government—are four of the five foundation elements we outlined as being present in the early state constitutions. Using these four analytic categories to organize our examination of colonial documents also permits us to determine the genesis and development of what finally became the American constitution.

Looking at the first list in the Appendix, we find two constitution-like documents written by the colonists which predate the Mayflower Compact. The first, "Articles, Laws, and Orders . . . for the Colony in Virginia," was written by colony leaders and handed down to the rest of the colonists. It thus has the clear form of an ordinance or set of fundamentals rather than of a compact, Although internally called a set of "laws," it, in fact, amounts to the ordering of the colony according to a set of principles, rights, and duties which define the fundamental values of the colony. We find a commitment to being a religious people faithful to the Ten Commandments, honest in their dealings with each other and the Indians, obedient to those in authority, and prone to hold cleanliness in high regard.

[22]To a certain extent the terms "people" and "public" were used interchangeably by colonial Americans. Strictly speaking, however, these terms refer to collections of people standing in a different relationship to each other. We are using the term "people" to refer to individuals standing in a social relationship, that is as members of a society, while "public" refers to members of a society who also stand in a political relationship to each other, that is, they are in a *civil* society. Thus, the second foundation element, the creation of a people, produced a social community, whereas the third foundation element, the creation of a government, produced a public. We make the analytic distinction here both for the sake of clarity, and because some of the early foundation documents created only a society, a people organized into a community where there had been only an aggregate of individuals before. Other documents created only a civil society, under the assumption that the society was already in existence, and thus elevated a people to a true public. Of course, some documents performed both operations simultaneously.

[23]Appropriately, the Pilgrim Code of Law, 1636, which essentially contained only the specifications for a form of government to the exclusion of other foundation elements, is considered by George Haskins and Harry M. Ward to be the first true American constitution. As we shall see later in the essay, a true constitution is one in which the fifth foundation element, the specification of a form of government, either dominates a legal instrument or is the sole element to be found in that instrument. See George L. Haskins, "The Legal Heritage of Plymouth Colony," in *Essays in the History of Early American Law,* ed. David H. Flaherty (Chapel Hill: University of North Carolina Press, 1969), p. 123; and Ward, *Statism in Plymouth Colony,* p. 71.

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The second document, "Laws Enacted by the First General Assembly of Virginia," although apparently a compact in form, also tends toward being a set of ordinances or fundamentals. It, too, establishes no people, no government, or no specific set of political institutions. Instead it is a statement of the kind of people they are or wish to become. There are injunctions against gambling, idleness, drunkenness, and immodesty in dress. There is also great concern for the conversion of the Indians and their fair treatment, for economic development, for obedience to the law, and for correct religious observance. The original documents recording the creation of the people and of the government whose definition we see unfolding here have been lost, at least any of those written by the colonists after the granting of the charter in England.

It is significant that these first documents resemble in content and form the self-definition documents soon to be written in Massachusetts and Connecticut. This indicates that what we will find in New England was not peculiar to the Puritans. Even in Virginia we have the inclination toward self-definition, and that self-definition has much of the content found in New England documents of self-definition. This dedication to the creation of a community with an identity, defined in terms of mutual values, interests, and rights, will slowly evolve in form to what we will recognize as bills of rights. Furthermore, both of these Virginia documents were made under the authority granted by an earlier charter made under the authority of the king. Thus, they derive from civil covenants. Finally, it should be noted that the latter document has the form of a compact since it flows directly from a mutual agreement of the assembled people.

A careful examination of the Plymouth Combination (Mayflower Compact, 1620) illustrates the early presence of other constitutional elements. It begins, "In the name of God, amen." Strictly speaking, a document is a religious covenant only if it creates a church or religious community, but as we noted earlier, calling upon God to witness an agreement is the form of a religious covenant, and it is the borrowing of the form that interests us. "We whose names are underwritten," it continues, "do by these presents, covenant and combine ourselves together into a civil body politic for our better ordering and preservation and furtherance of the ends aforesaid. . . ." This is obviously an agreement to create a government, but it is also, we know from history, an agreement to create a people. Not all aboard the ship were Puritans, a fact which did not seem crucial when setting sail from England for chartered land in Virginia. However, arriving a great distance north of Virginia, the colonists found themselves in a situation where the charter was not effective. Worse, the Puritans found themselves in the company of people not bound by the religious covenant which defined them as a people, and no longer restrained by a charter. The Puritan leaders wrote up this agreement to bind the non-Puritans to their

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community, and also to create the basis for political obligation until a new charter could be had. The sentence just quoted above contains the first foundation element of explaining why the document is needed—for their better ordering and preservation. But the last part of the sentence contains a crucial commitment as it binds the new members of the community, as well as the old, to a set of goals which define them as a people—". . . having undertaken, for the glory of God, and advancement of the Christian faith, and the honor of our King and country, a voyage to plant the first colony in the northern parts of Virginia. . . ." Those that signed the document became a people, and provided a self-definition of a people seeking the glory of God and the advancement of the Christian religion. They defined themselves as a fundamentally religious people under the guise of simply establishing self-government.

With a self-definition in embryonic form, we find the first four foundation elements present in the Mayflower Compact. The fifth element, the specification of a form of government, is also present in embryonic form. The document tells us that the laws of the colony shall be made with the participation of all those undersigned, implying a democratic system, that the laws passed shall affect all equally, and that laws shall be made for the "general good of the colony."[24]

The Plymouth colonists say that they "covenant and combine" themselves. As noted earlier, the word covenant was often used interchangeably with compact. To compact was to reach an agreement in the special sense outlined previously. While the Plymouth Combination is a compact and may accurately be termed the Mayflower Compact, it also has the form of a religious covenant as God is called upon as witness. This had the advantage of permitting the Puritans later to take out the document and point to the word covenant if any objected to the theocracy being erected. The use of "combine" could be viewed as an attempt by the authors to cover all bases in an ambiguous situation. The latter explanation is more likely. As the common alternative to "agreement," "combination" establishes a compact. The covenant form would satisfy the religiously inclined in the community, and the compact form would satisfy those who were not religious. Later in the text the authors similarly use a number of words to cover the linguistic territory: ". . . and by virtue hereof to enact, constitute, and frame such just and equal laws, ordinances, acts, constitutions, and officers. . . ." The Mayflower Compact reads like an agreement written by cautious minds bent upon taking no chances.

Looking forward to the preamble to the United States Constitution, we find a pattern that would be at least familiar to the authors of the Mayflower Compact. We can now recognize the following elements: "We, the People of the United States" (definition of a people, element

[24]For a similar analysis see Kendall and Carey, *Basic Symbols,* ch. 1.

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two) "in order to form a more perfect Union, establish justice, insure domestic Tranquility, provide for the common defense, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity" (definitely a statement of why the document is being written, first element; but also the beginnings of a self-definition of a people, fourth element) "do ordain and establish this Constitution for the United States of America (the third element, the creation of a government). The preamble amounts to a secularized version of at least three, and probably the first four constitutional elements found in the Mayflower Compact, and uses some of the same language.

The fifth element, the specification of a form of government, is found in the body of the Constitution, so all of the elements appear to be present. However, the element of self-definition was so attenuated compared to the state constitutions that the Whigs pressed for rectification through the addition of a bill of rights. James Madison argued at one point in *The Federalist* that a bill of rights would be dangerous, but most of all he and the other Federalists felt that a bill of rights did not belong in a constitution. It would be superfluous. The Whigs, on the other hand, while they might agree that a bill of rights does not belong in a constitution proper, felt it does belong in the document which contains the constitution, i.e. the compact. The difference in attitude between Federalist and Whig, with respect to bills of rights, is one clear indication that the Federalists viewed the United States Constitution as a constitution and nothing more, while the Whigs tended to work from the compact perspective as a result of the state constitutions. The nature and origin of this compact perspective will be examined more completely later.

We have established the first tentative links between the early colonial documents of foundation and self-definition and the United States Constitution, but, before moving to a fuller exploration of that development, we need to establish the congruence between the form found in these colonial documents and the religious covenant form. Take, for example, the covenant of the Charleston-Boston Church (July 30, 1630).

> In the Name of our Lord Jesus Christ, & in Obedience to His holy will & Divine Ordinance.
>
> We whose names are hereunder written, being by His most wise, & good Providence brought together into this part of America in the Bay of Massachusetts, & desirous to unite ourselves into one Congregation, or Church, under the Lord Jesus Christ our Head, in such sort as becometh all those whom He hath Redeemed, & Sanctifyed to Himself, do hereby solemnly, and religiously (as in His most holy Presence) Promise, & bind ourselves, to walke in all our ways according to the Rule of the Gospell, & in all sincere Confirmity to His holy Ordinances, & in mutual love, & respect each other, so near as God shall give us grace.

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Here we have (1) an explanation of why the document is needed, the desire to unite in one congregation; (2) the creation of a people, all those undersigned; (3) the creation of a church (instead of a government); and (4) the definition of themselves as a people, a people who walk in the ways of the Gospel, God's ordinances, and in mutual love. This, a standard church covenant, can be compared to a standard Jewish covenant, and the easy appropriation from Jewish covenant to colonial compact through Protestant church covenants is apparent.[25]

We would not want to make the mistake of simply noting the similarities between the Mayflower Compact and early state constitutions and conclude that the connection with covenants has been demonstrated. The framers of the Constitution did not go back and read the Mayflower Compact, nor can we assume that anyone outside of Plymouth ever read it in colonial America. It is necessary to show that there is a continuous connection if we are to securely link constitutions with covenants.

THE EVOLUTION OF FOUNDING DOCUMENTS

When we examine the typical Jewish covenant reproduced by Elazar, we find that the operative word is "agreed." By operative word we mean that word (or words) which creates the force of a document or gives it effect. The operative words in the church covenant reproduced on the previous page are "promise" and "bind." An examination of the operative words in the eighty-six colonial documents we have listed as being written by Americans before 1722 provides a linguistic pattern that helps demonstrate the derivation of the compact form from the covenant form. For example, there are twenty-two documents which create a people. Two are the Connecticut Charter of 1662 and the Rhode Island Charter of 1663. Although written by the colonists, these two documents were issued as formal charters from the king and thus, used the operative words ordain, constitute, declare, and grant. However, the other twenty documents created a people used the following words: covenant, combine, agree, promise, and consent (often two or more of these in combination). In addition, there are fifteen documents where the people create a government. The operative words are: covenant, combine, agree, promise, conjoin, consent, and bind (again with two or more of these being used in the same document). There are twenty cases in which a people engage in self-definition. The operative words are: swear, promise, consent, agree, combine, and bind.

For a group of people to agree, consent, combine, or promise is to create a compact. Since "covenant" is used at no other time in these eighty-six documents than in the instances listed above, and since it is

[25] The preamble to a Jewish model charter for establishing a congregation-community is reproduced in Elazar, "Covenant as the Basis of the Jewish Political Tradition," p. 16.

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often used in conjuction with words like agree, combine, promise and consent, there is a close association implied between a covenant and a compact. The connection is strengthened when we recall the definitions of agree and combine outlined earlier in this article. Both covenant and compact imply a very strong communitarian emphasis.

Using such linguistic patterns, the compact form can be contrasted with the ordinance form or the fundamentals form. For example, there are eighteen cases among the eighty-six documents where the legislature engages in the self-definition of a people. Fourteen of the eighteen use "enacted" or "ordained" as the operative word, usually both; one uses "consent," but along with "decree," "confirm," and "constitute." Another uses agreed with "declare" and "grant," and only two use the strict compact form with "consent" and/or "agree." The distinction is even more pronounced when it comes to defining the form of government. Of the nineteen documents where the people as a whole engage in a creation of institutions (the fifth foundation element), all use the compact form with its operative words. Of the twenty-five documents where a form of government is written by a legislature, only six use the compact form. Instead, "declare," "ordain," and "enact" are commonly used. Also, the descriptive words most frequently found in these legislatively written documents—words which describe the nature of the document—are "fundamentals," "frame," "laws," "ordinances," and "constitutions."

There is a very sensible reason underlying the two different linguistic patterns. If a legislature is writing the document, then the people and government are already in existence and there is little sense in compacting or covenanting if it has already been done. Rather, one is interested in framing and constituting laws and ordinances. We can distinguish, then, compacts from non-compacts on the basis of the operative words they use. This pattern of word usage remains consistent between 1620 and 1776.

What does develop, however, is a distinction between compacts and constitutions. In the early documents we tend to have very attenuated content when it comes to self-definition and the form of government, but over time these are the only two elements that can really develop. Once you have created a people, and created a government, later documents can only note the fact, as there is usually no reason to reinvent these acts, unless they are to be organically celebrated. If they are not repeated as organic elements in later documents, they are simply assumed. On the other hand, self-definitions will grow in length and definition and be changed from time to time. Also, political institutions will be defined at greater length, redefined occasionally, and sometimes replaced. The parts of the foundation documents containing these two elements become more and more prominent, until they overwhelm the other three elements in terms of the number of words devoted to them.

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The word "constitution" is applied only to the fifth element in these colonial documents, and as the fifth element becomes the longest of all, the entire document tends to be called a constitution, while the other four elements are squeezed into a preface and/or bill of rights. Sometimes the term "frame" is used to identify this fifth element. Strictly speaking what comes to be called a constitution by 1776 still refers only to the fifth element—the description of the form of government. It is no accident, then, that most early state constitutions do not include the bill of rights in the constitution proper. In most instances, the early state constitutions would label the part describing the institutions as a "constitution" or "frame," but not the bill of rights or the long preamble. These portions of the documents did not have constitutional status, and thus, could not and did not limit government activity in the legalistic sense we now assume. This explains why "ought" and "should" were frequently used in bills of rights as opposed to the legally binding "shall" and "will" found in the body of the constitution.

Today, we place the word constitution at the very beginning of the founding document, blithely unaware that up to and including the United States Constitution of 1787 four of the foundation elements were not yet formally part of the constitution. Even when the Bill of Rights was added to the national Constitution its legal role and status was at best questionable. Only sometime in the nineteenth century did all five elements become part of the constitution, and that only at the state level, since the preamble is still not considered part of the United States Constitution for legal purposes. In 1978, Barbara Jordan introduced a bill in Congress to so incorporate the preamble, but it did not come out of committee. The national Bill of Rights, of course, was gradually given constitutional status by the Supreme Court.

The pattern in word usage we have outlined had another important consequence for American constitutional history. Since Americans had become used to colonial legislatures writing the frame, or constitutions of their founding documents, it seemed perfectly natural for the state legislatures to write the early state constitutions. The 1780 Massachusetts Constitution became the first to be written by a specially elected convention *and* approved by the people in referendum. Only one other constitution during the eighteenth century would be so treated. The rest would be approved by legislatures, except for the national Constitution which was approved by specially elected state conventions. This meant that the concept of a constitution as a higher law limiting government would not be adopted as an operating constitutional principle until the nineteenth century, although the concept was present during the eighteenth century.[26] As long as state legislatures could

[26]The position being argued here concerning the historical development of constitutions as higher law is somewhat at variance with the general literature. There is not space to develop the broader argument beyond reference to the works cited in footnote ten, and to

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approve, and sometimes write state constitutions, these documents were unlikely to limit the legislature.

Even though most of the early state constitutions were written and approved by legislatures instead of by the people directly, there was still a strong tendency to use the compact form. Excluding the 1776 Rhode Island and Connecticut constitutions, as they were readoptions of charters, eight of the remaining sixteen state constitutions written by 1789 either refer to themselves as compacts or use the compact form.[27] Of the twelve that have bills of rights, nine separate the bill of rights from the section labelled "constitution" or "frame of government." In addition, the 1777 Vermont document does the odd thing of declaring the Declaration of Rights and the Frame of Government together to be the constitution. This last formulation was to become standard by the late nineteenth century, but in 1777, the term "constitution" was still unsettled enough in meaning to require an explicit definition. It was also standard in these constitutions which separated bills of rights from the constitution proper to title the constitutional section "The Constitution, or Form of Government," as if otherwise the citizenry might not understand what a constitution was.

It is understandable that there was some uncertainty as to the inclusion of matters of self-definition in constitutions. Looking at the colonial pattern, we find that twenty-two of the eighty-six documents written by colonists combined some self-definition with the description of a form of government. Another twenty-four contained a self-definition with no description of a form of government, and thirty were documents of foundation containing the description of a form of government but no self-definition (the other ten, for one reason or another, contained neither of these foundation elements). Looked at one way, during the colonial era Americans were more than twice as likely to separate the elements of self-definition and governmental description as they were to blend them in the same document (54 versus 22). Looked at another way, colonial Americans had a tendency to link these two elements.

note that viewing a constitution as a "fundamental law" is not the same as viewing it as a "higher law." The reader may also wish to consult Charles F. Mullett, *Fundamental Law and the American Revolution, 1760-1776* (New York: Octagon Books, Inc., 1966); and Lawrence M. Friedman and Harry N. Schreiber, eds. *American Law and the Constitutional Order: Historical Perspectives* (Cambridge: Harvard University Press, 1978).

[27] Those using the compact form were the 1776 Delaware, the 1776 Maryland, the 1776 New Jersey, the 1776 Pennsylvania, the 1776 South Carolina, the 1778 South Carolina, the 1780 Massachusetts; and the 1784 New Hampshire. This list is intentionally conservative. Four more constitutions are virtually indistinguishable from those using the compact form, although they lack the single operative word such as "compact," "agree," or "combine" we usually require for a formal compact. They are: the 1776 Virginia, the 1776 North Carolina, the 1777 Vermont, and the 1786 Vermont. These and all the early state constitutions can be most easily found reprinted in Francis N. Thorpe, ed., *The Federal and State Constitutions, Colonial Charters, and Other Organic Laws of the United States*, 7 vols. (Washington, D.C.: Government Printing Office, 1907).

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Most of the thirty documents which described a form of government without the self-definition foundation element were basically elaborations upon earlier documents, such that the presence of further self-definition was not appropriate. Some of the pure self-definition documents were elaborations of a similar sort that precluded attachment to a description of government. An apparent two-to-one ratio is thus reduced to something closer to one-to-one. Furthermore, those twenty-two documents where the two foundation elements *were* combined tended to be the most prominent and well known in colonial America. Examples are: Pilgrim Code of Law (1636), Massachusetts Body of Liberties (1641), General Laws and Liberties of New Hampshire (1679), Fundamentals of West New Jersey (1681), Frame of Government of Pennsylvania (1682), and the Charter of Liberties and Privileges of New York (1683).

As if to reflect the roughly balanced tendencies in colonial documents, nine of the eighteen state constitutions adopted between 1776 and 1789 attach a bill of rights to the constitution proper, but keep them separate and distinct. Four have no bill of rights at all, while five incorporate a short bill of rights as an undistinguished part of the constitution proper.[28] Those attaching a bill of rights are those state constitutions using the compact form, while those with no separate bill of rights or no bill of rights at all (with the exception of the 1776 New Jersey Constitution) do not use the compact form. Thus, approximately half of the early state constitutions use the compact form with the foundation element of self-definition having evolved into a bill of rights. The other half use a purer constitutional form in which the fifth foundation element dominates, and the element of self-definition is either extremely attenuated or missing altogether.

Furthermore, those state constitutions that did use the compact form consistently used "compact" to refer to the entire document, but used "constitution" to refer only to the sections of institutional description. This was in keeping with the pattern in colonial documents of using the compact form to include all five foundation elements, but then internally to introduce the institutional description with the words "ordain," "frame," and "constitute." Those early state constitutions without separate bills of rights, and not using the compact form, were the first modern constitutions. The first three foundation elements were very attenuated and usually limited to a brief preamble. The United States Constitution is of this type, although even closer to a true modern constitution since the notion of limited government is more apparent than in similar state constitutions. The bifurcation of the early state

[28]Those without any bill of rights are: the 1776 New Hampshire, the 1776 South Carolina, the 1776 Rhode Island, and the 1776 Connecticut. Those that lack a separate bill of rights, but rather bury a few rights within the institutional description are: the 1776 New Jersey, the 1777 Georgia, the 1777 New York, the 1778 South Carolina, and the 1789 Georgia.

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constitutions into two forms still needs explaining, but the presence of two competing forms probably goes a long way toward explaining why the national Constitution, later, had a bill of rights added, contrary to the theoretical tenets of its authors.

In sum, the constitution as we know it today required the extension of the covenant-compact form to include the fifth constitutional element; the creation of a new word, constitution, to describe this fifth element; and the subordination of all the foundation elements to the term used initially only to describe the fifth element. In the process of this last step—the subordination of all the elements to the term "constitution"—the covenant-compact elements tended to become attenuated to the point where we no longer recognize them as essential to our founding documents. The United States Constitution is a good example. This meant that our founding documents, now called constitutions, no longer created communities as did our very first documents of foundation during the seventeenth century.

THE CHARTER BACKGROUND TO THE MODERN CONSTITUTION

Essentially, the development of documents of foundation from covenants to modern constitutions has been one of movement away from a communitarian perspective toward a legalistic, contractual view of political communities. This shift has been associated with the rise of the fifth foundation element to such prominence that it overshadowed the other four elements of foundation. This fifth element—the specification of a form of government—itself, underwent a development, bringing together a variety of threads in one complex fabric which was eventually labelled a constitution.

At first, the fifth element was limited to the broad, uncomplicated description of basic political institutions. The specification of majority rule, periodic assemblies of people, and a list of officers and their mode of election was often the only content to be found for this element. Gradually, the description became longer, more detailed, and more complete. As this occurred, the fifth element became more than merely institutional description, and came to include a number of things we now assume to be essential parts of a constitution. By 1776, the notion of a constitution would include along with institutional description, a definition of citizenship, the placement of sovereignty, the establishment of a regime for ruling, the distribution of political power among offices and institutions, and some definition of the limits of governmental power. These various functions, which came to be part of the fifth element, can be found in documents written by the colonists, but their presence in these colonial documents can be attributed to external influences, specifically to the charters, patents, and ordinances written for the colonists in England.

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Since the charters establishing the American colonies were signed under the royal seal, the highest civil authority, they were civil covenants in form. Civil covenants in England had evolved a considerable distance from religious covenants in that they did not have the strong communitarian basis. Instead, they were legalistic and contractual in character. Written by legal scribes who were paid by the line, they were much removed also from the original idea of a charter being written on a single piece of paper. Their wordy, convoluted, legally tight texts could have been written by twentieth century lawyers practiced in anti-trust suits. Typically, a colonial charter would contain the following elements, to which we shall henceforth refer as charter elements: (1) identification of the grantor, (2) identification or creation of the grantee(s), (3) the reason for the grant or the missions being pursued, (4) what is being granted, (5) the license or exclusive use given by the grant, (6) how the grant is to be administered, (7) specific restrictions or limits in using the grant, and (8) the reciprocal duties owed the grantor by the grantees. A brief discussion of these charter elements will prove instructive.

The identification of the grantor and grantees was similar in form to the identification of partners in a contract. Unlike colonial foundation documents where the feel was one of many people merging in a new entity, charters explicitly identified two sides, in effect two parties, involved in a relationship where the parties remained distinct. Nevertheless, the formation of the grantees into a single party paralleled foundation documents to a degree, since a new entity was created, only this new entity was formed by and defined by its relationship to the other party in the charter, the grantor. This asymmetry in the relationship was a fundamental difference between charters and foundation documents written by the colonists.

The first two charter elements, identification of the grantor and the grantee, is followed by a third—the reason for the document. As in foundation documents, there seemed to be an incurable desire to set forth the history leading up to the charter explaining why it is being written. Frequently a part of this element is the definition of a mission. For example, the grantees might have the mission of exploring or mapping a certain area. Or, they may be charged with the spreading of the Christian religion. It is interesting that, despite the highly contractual nature of charters, there seemed a determination to raise the tone well above the simple statement of reciprocal duties.

The fourth charter element was the specific grant. Usually it was a geographically defined area. Sometimes there were only broad territorial descriptions such as between two specific latitudes or between two rivers. Sometimes the geographical description was more detailed. The grant usually included certain mineral and trade rights. The fifth charter element was the indication that the grantees had exclusive use of

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what was granted. This was usually established in the form of permission to use any force necessary to exclude any non-charted person or persons from sharing in the grant.

The sixth charter element, a description of how the grantees are to administer the grant, invariably amounted to granting them the right to local self-government within the geographical bounds defined by the charter. Sometimes there was a description of specific institutions, such as a council or periodic assemblies. But, more often than not, it took the form of establishing an oversight council in England, extending power to the colonists to handle all collective decisions on their own, including civil and criminal matters. The foundation documents written by the colonists sometimes resulted from defective or inoperative charters forcing them to act, but more often they were simply filling in the spaces left them in the charters.

The seventh charter element was closely related to the sixth. The grant was limited not only by geographical boundaries, and agreements for sharing the economic output of the plantation, but also by the limits placed upon self-government. The rules, laws, and ordinances made by the grantees were always to be in accordance with the laws of England, which function as a higher law, and not disapproved by the grantor or his council in England who function as the final authority. The eighth charter element was often indistinguishable from the seventh insofar as reciprocal duties almost always imply a restriction on the use of the grant. Returning a share of the economic output, in some form, to England for use by the grantor was simultaneously a limit on use of the grant and a reciprocal duty. This was mentioned as a separate element, however, because sometimes there were duties of a different kind. For example, in some charters much was made about continued allegiance to the crown and the provision of future military duty to protect the colony for England.

These charter elements will not always appear in this order, but it is a rare charter that does not contain at least the first seven. The other documents written in England, on the other hand, tended to elaborate upon only a few of these charter elements. Initially, there was an attempt to run some colonies with the council in England. This did not work given distance and cross-Atlantic passage time, so acts and orders made in England tended to be either general elaboration upon one of the charter elements, or approval of some document written in the colonies. Sometimes the grantee(s) would change identity, or the geographical boundaries of the colony would be adjusted. More frequently there would be changes made in specific aspects of how the charter was being administered. Ordinances, clarifications, and instructions would be sent concerning either a structural change, as in the creation of new administrative posts, or an operational change, such as how to treat the Indians or how to regulate economic exchange. Those writing these

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ordinances and charters treated the charters more as we would treat constitutions today than as mere contracts. One does not usually engage in constant rewriting of a contract, nor does one write a contract with such broad provisions as the charters contained, and leave so much to one of the parties to determine. Also, contracts do not arise from or preserve such an asymmetry of power. These charters, even though based in England, did accustom the colonists to running their own local governments, and doing so in the framework of a broader design contained in a written document. They also learned how to flesh out these charters with written foundation documents of their own, thereby developing a sense of what should go into a comprehensive foundation document.

In addition, there were some similarities between charters handed them and the foundation documents they wrote themselves—at least structurally. The identification or creation of a people parallels somewhat the creation of grantees. Both charter and foundation document provided explanations for why the document was being written, both frequently created a government and described some of the basic institutions, and both carried the sense of being susceptible to alteration through an orderly process, involving reference to earlier public documents. Even so, the charter was based upon an asymmetrical relationship between partners that never approached a true community. The relationship was a legal one, and injected a legalistic, letter-of-the-law dimension into relationships among a people trying to build and maintain a communitarian spirit. With charters, power flowed in one direction, and the partners remained distinct. Commensurate with this stance, the operative words in the charters were "grant," "give," "order," "ordain," "confirm," "establish," and "constitute." These are also the operative words associated in the colonial foundation documents with the fifth element—that which came to be called constitution. Constitutions were thus somehow related to these charters, at least in the American context.

Take a charter as just described and do the following. Replace the king as the highest civil authority with "the people." This transforms it from a civil covenant into what is more properly a compact. The people as grantor give a monopoly of political power to governmental officials, who become the grantees. Provide reasons for doing so, and note that the power relationship is an asymmetrical one from grantor to grantee. Give the grantees the mission of establishing justice, maintaining domestic tranquility, etc. within a given geographical area. Give permission for the grantees to use any force necessary to exclude any person or persons from living within the geographical area or using its fruits without the permission of the grantor. Establish institutions whereby the grantees may make all collective decisions, including civil and criminal matters, as long as the decisions are agreeable to the grantor

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and not contrary to the provisions fround within this "charter." What you have in outline form is a description of the United States Constitution, a charter made into a constitution, a legalistic document with contract overtones. Take a constitution so described, make it the last element in a document that begins by creating a people who then agree to form a government, and you have a compact. Add a self-definition and you have a state constitution.

It is clear from this brief analysis of charters, that the United States Constitution, while it has the elements of a compact, was, in its initial form before the Bill of Rights was added, more derivative of the charter form than of the compact or covenant form. Ten of the eighteen state constitutions, on the other hand, were complete compacts with a constitution as only one prominent element. Viewed in this light, the struggle between the Federalists and Whigs can be seen as one between those partial to liberalism and its emphasis upon limited government, institutional arrangements, and justice defined legalistically; and those partial to communitarianism with its emphasis upon a homogeneous population with well defined, widely shared values and rights, and relatively direct involvement of popular consent in collective decision making. Most state constitutions can be seen as reflecting a direct link with religious covenants traced through the compacts written by colonists during the seventeenth century. The United States Constitution and several state constitutions are closer to civil covenants in English law as mediated by seventeenth century charters granted to the American colonists.[29] The national document is a truer constitution. The state constitutions are generally truer compacts with the fifth constitutional element placed in a broader context.

Both approaches to constitution making have their advantages and disadvantages, depending upon the circumstances one faces and the values one holds at the time of founding. Regardless, it is possible to view American political history, since 1789, as the competitive interaction of Federalist and Whig political theory, an interaction structured by two different constitutional forms.

[29] Aside from the 1725 Massachusetts, 1776 Rhode Island, and 1776 Connecticut documents which were in fact charters, four more of the first nineteen documents used as state constitutions strongly resemble the colonial charter with respect of their elements. They are: the 1776 New Hampshire, the 1777 Georgia, the 1777 New York, and the 1789 Georgia. These seven early state constitutions, along with the United States Constitution, comprise the core documents for the noncompact foundation form in American constitutional history.

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APPENDIX
Lists of American Documents of Foundation

A List of Constitution-Like Documents Written by American Colonists Before 1722

1. Articles, Laws, and Orders, Divine, Politic, and Martial for the Colony in Virginia—1610-1611.
2. Laws Enacted by the First General Assembly of Virginia—Aug. 2-4, 1619.
3. Plymouth Combination (also known as the Mayflower Compact, and as the Agreement Between the Settlers at New Plymouth)—Nov. 11, 1620.
4. Plymouth Oath of Allegiance and Fidelity—1625.
5. Salem "Civil" Covenant—1629.
6. Agreement of the Massachusetts Bay Company at Cambridge, England—August 26, 1629.
7. Watertown Covenant (Massachusetts)—July 30, 1630.
8. Massachusetts Election Agreement—Oct. 19, 1630.
9. Massachusetts Agreement on a Legislature—May 9, 1632.
10. Cambridge Agreement (Massachusetts)—Dec. 24, 1632.
11. Dorchester Agreement (Massachusetts)—Oct. 8, 1633.
12. Cambridge Agreement on a Town Council—Feb. 3, 1634.
13. Cambridge Oath of a Freeman—1634.
14. Massachusetts Agreement on the Legislature—May 14, 1634.
15. 1st Salem Oath (Massachusetts)—April 1, 1634.
16. 2nd Salem Oath—May 14, 1634.
17. Watertown Agreement (Massachusetts)—Aug. 23, 1634.
18. Charlestown Agreement on, and Election of, a Board of Selectmen—Feb. 10, 1635.
19. Salem's "Enlarged Covenant"—1636.
20. Plymouth Agreement (attached to the Pilgrim Code of Law)—Nov. 15, 1636.
21. Pilgrim Code of Law (also known as the Structure of the Government of New Plymouth)—Nov. 15, 1636.
22. Providence Agreement (Rhode Island)—Aug. 20, 1637.
23. New Haven Plantation Covenant—1638.
24. Act for Establishing the House of Assembly and the Laws to be Made Therein (Maryland)—March 12, 1638.
25. Government of Pocasset (Portsmouth, Rhode Island)—April 7, 1638.
26. Act for Swearing Allegiance (Maryland)—1638.
27. An Act What Persons Shall be Called to Every General Assembly and An Act Concerning the Calling of General Assemblies (Maryland)—1638.
28. Act for the Liberties of the People (Maryland)—1638.
29. Fundamental Orders of Connecticut—Jan. 14, 1639.
30. Government of Portsmouth (Rhode Island)—April 30, 1639.
31. Newport Agreement (New Hampshire; also known as Government of Newport)—May 28, 1639.
32. Guilford Covenant (Connecticut)—June 1, 1939.
33. Structure of Town Governments (Windsor, Hartford, Wethersfield)—Oct. 10, 1639.
34. Fundamental Articles of New Haven—June 4-14, 1639.

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35. Agreement of Settlers at Exeter (New Hampshire)—Nov. 4, 1639.
36. Dover Combination (New Hampshire)—1639.
37. Connecticut Oaths of Fidelity (Hartford)—1640.
38. Plantation Agreement at Providence (Rhode Island)—Aug. 27, 1640.
39. Connecticut Oath of Agreement—1640.
40. Massachusetts Body of Liberties—December, 1641.
41. The Combination of the Inhabitants Upon the Piscataqua River for Government (New Hampshire)—Oct. 22, 1641.
42. Organization of the Government of Rhode Island—March 16-19, 1641.
43. Laws Regulating Church Government (Virginia)—March, 1642.
44. Capital Laws of Connecticut—Dec. 1, 1642.
45. New Haven Fundamentals (also known as Government of New Haven Colony)—Oct. 27, 1643.
46. New Haven Oaths of Fidelitie—July, 1644.
47. Massachusetts Bicameral Ordinance—March 7, 1644.
48. Massachusetts Ordinance on the Legislature—Nov. 14, 1644.
49. "Charter" of Providence (Rhode Island)—March 14, 1644.
50. Majority Vote of Deputies and Magistrates Required for the Passage of Laws in Connecticut—Feb. 3, 1644.
51. Warwick Agreement (Rhode Island)—Aug. 8, 1647.
52. Acts and Orders of 1647 (Agreement Between Providence, Warwick, Portsmouth, and Newport to form a Common Assembly)—May 19-21, 1647.
53. Laws and Liberties of Massachusetts—1647.
54. Massachusetts Ordinance on Legislative Procedure—Oct. 18, 1648.
55. The Cambridge Platform (Massachusetts)—Aug., 1648.
56. Maryland Toleration Act—April 21, 1649.
57. Duties and Privileges of New Plymouth Townships—1649.
58. Towns of Wells, Gorgiana, and Piscataqua Form an Independent Government (Maine)—July, 1649.
59. Connecticut Code of Laws—1650.
60. The Government of Virginia During the Commonwealth Period (A series of acts for governing)—April 30, 1652-March, 1659.
61. Puritan Laws and Liberties—Sept. 29, 1658.
62. Charter of Connecticut—April 23-May 25, 1662.
63. Charter of Rhode Island and Providence Plantations—July 8-18, 1663.
64. Concessions and Agreement of New Jersey (Nova Caesarea)—1664.
65. Concessions and Agreement of the Proprietors of Carolina with the Prospective Settlers—1665.
66. General Assembly of Rhode Island is divided into two houses—March 27, 1666.
67. A Declaration of the True Intent and Meaning of the Lords Proprietors, and Explanation of Their Concessions Made to the Adventurers and Planters of New Caeserea or New Jersey—1672.
68. Preface to the General Laws and Liberties of Connecticut Revised and Published by Order of the General Court at Hartford—Oct., 1672.
69. Charter of Fundamentals of West New Jersey (also known as the Concessions of West New Jersey)—1676.
70. Freedom of Conscience in West New Jersey—March 3, 1679.
71. General Laws and Liberties of New Hampshire—March 16, 1679.

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72. Fundamentals of West New Jersey—1681.
73. Concessions to the Province of Pennsylvania—1681.
74. Act for Freedom of Conscience in Pennsylvania—Dec. 7, 1682.
75. Penn's Charter of Liberties—1682.
76. Frame of Government of Pennsylvania—1682.
77. Frame of Government of Pennsylvania—1683.
78. Laws on Personal Freedom (Pennsylvania)—1683.
79. Fundamental Constitutions for the Province of East New Jersey—Nov. 23, 1683.
80. The Charter of Liberties and Privileges (New York)—Oct. 30, 1683.
81. Articles of Agreement Between the Members of the Frankfort Company, for the Settlement of Germantown, Pennsylvania—Nov. 12, 1686.
82. New York Charter and Privileges of His Majesty's Subjects—1691.
83. Frame of Government of Pennsylvania—Nov. 7, 1696.
84. Division of the Connecticut General Assembly into two houses—Oct. 13, 1698.
85. Charter of Privileges Granted by William Penn to the Inhabitants of Pennsylvania and Territories—Oct. 28, 1701.
86. Act to Ascertain the Manner and Form of Electing Members to Represent the Inhabitants of this Province (South Carolina) in the Commons House of Assembly—1721.

A List of Constitution-Like Documents Written in England for the Colonists Before 1735

1. Letters Patent to Sir Humphrey Gilbert—June 11, 1578.
2. Charter to Sir Walter Raleigh—March 25, 1584.
3. Charter of Acadia Granted by Henry IV of France to Pierre du Gast, Sieur de Monts—Dec. 18, 1603.
4. First Charter of Virginia—April 10, 1606.
5. Instructions for the Governing of Virginia—Nov. 20, 1606.
6. Instructions from the Virginia Council to Sir Thomas Gates—May, 1609.
7. Second Charter of Virginia—May 23-June 2, 1609.
8. Third Charter of Virginia—March 12-22, 1611-12.
9. The Charter of New England—Nov. 3, 1620.
10. Ordinance of 1621: Establishment of Representative Government in Virginia (supposedly much the same as the now missing Great Charter of 1618 which called the first Virginia Assembly in 1619).
11. Constitution for the Council and Assembly in Virginia (also known as Ordinance for Virginia)—July 24, 1621.
12. Charter, Dutch West India Company—June 3, 1621.
13. Grant of New Hampshire to Capt. John Mason—Nov. 7, 1629.
14. Charter of the Colony of New Plymouth Granted to William Bradford and his Associates—Jan. 10, 1629.
15. The Charter of Massachusetts Bay—March 4, 1629.
16. The Form of Government for the Colony (Massachusetts Bay)—April 30, 1629.
17. Dutch Charter of Privileges to Patroons—1629.
18. The Charter of Maryland—June 20, 1632.

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19. Grant of the Province of New Hampshire to John Wallaston, Esq.—April 11, 1635.
20. Grant of the Province of New Hampshire from Mr. Wollaston to Mr. Mason—June 11, 1635.
21. Grant of the Province of New Hampshire to Mr. Mason—April 22, 1635.
22. Grant of the Province of Maine—April 3-13, 1639.
23. Commission from Sir Ferdinando Gorges for Governing Maine—March 10, 1639.
24. Bradford's Surrender of His Patent of Plymouth Colony to the Freemen—March 2, 1640.
25. Patent for Providence Plantations (Rhode Island)—Nov. 2, 1643.
26. First Charter of Carolina—March 24-April 3, 1663.
27. Grant to the Duke of York—March 12-22, 1664.
28. The Duke of York's Release to John Lord Berkeley and Sir George Carteret—June 24, 1664.
29. Charter of Carolina—June 30, 1665.
30. Order for the Submission of the Province of Maine to Massachusetts—May 27, 1668.
31. The Fundamental Constitutions of Carolina (only partially put into effect)—1669.
32. Temporary Laws of Carolina—1671-1672.
33. His Royal Highness's Grant to the Lords Proprietors, Sir George Carteret—July 29, 1674.
34. Commission of John Cutt—1680.
35. Proposals for the Future Settlement of the Affairs of Maine—Oct. 15, 1681.
36. Charter for the Province of Pennsylvania—Feb. 20, 1681.
37. Commission of Sir Edmund Andros for the Dominion of New England—April 7, 1688.
38. The Charter of Massachusetts Bay—1691.
39. Instructions for Colonel Philip Ludwell, Governor of Carolina—Nov. 8, 1691.
40. Surrender From the Proprietors of East and West New Jersey of their Pretended Right of Government of Her Majesty—April 15, 1702.
41. Charles II's Grant of New England to the Duke of York 1676—Exemplified by Queen Anne—1712.
42. Charter of Georgia—1732.

Proposals for Federating or Uniting The Colonies or States

1. New England Confederation of 1643.
2. Commission of Council for Foreign Plantations, 1660.
3. William Penn's Plan of Union, 1696.
4. Report of Board of Trade on Union of New York with Other Colonies, 1696.
5. D'Avenant Plan, 1698.
6. A Virginian's Plan, in "An Essay on the Government of the English Plantations on the Continent of America," 1701.
7. Livingston Plan, 1701.
8. Earl of Stair's Proposals, 1721.
9. Plan of the Lords of Trade, 1721.

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10. Daniel Coxe's Plan, in "A Description of the English Province of Carolina," 1722.
11. Kennedy Plan, 1751.
12. Franklin Plan, 1754.
13. Richard Peter's Plan, 1754.
14. Hutchison Plan, 1754.
15. Plan of the Lords of Trade, 1754.
16. Dr. Samuel Johnson's Plan, 1760.
17. Galloway Plan, 1774.
18. Franklin's Articles of Confederation, 1775.
19. The Articles of Confederation, 1778.
20. Drayton's Articles of Confederation, 1778.
21. Webster's Sketches of American Policy, 1785.
22. Randolph's Plan, 1787.
23. Pinckney's Plan, 1787.
24. The United States Constitution, 1787.

This list is taken from Sydney George Fisher, *The Evolution of the Constitution of the United States* (Philadelphia: J. B. Lippincott Co., 1897), p. 9. To these must certainly be added the Acts and Orders of 1647, which established the first functioning confederation in America, and the Royal Commission of 1688 to Gov. Andros from the king to unite all of New England, New York, and the two Jerseys.

Early State Constitutions

1. 1725 Massachusetts Constitution
2. 1776 New Hampshire Constitution
3. 1776 South Carolina Constitution
4. 1776 Virginia Constitution
5. 1776 Maryland Constitution
6. 1776 Delaware Constitution
7. 1776 Rhode Island Constitution (actually, the 1663 Charter readopted)
8. 1776 Connecticut Constitution (the 1662 Charter readopted)
9. 1776 Pennsylvania Constitution
10. 1776 North Carolina Constitution
11. 1777 Georgia Constitution
12. 1777 New York Constitution
13. 1777 Vermont Constitution
14. 1778 South Carolina Constitution
15. 1780 Massachusetts Constitution
16. 1784 New Hampshire Constitution
17. 1786 Vermont Constitution
18. 1789 Georgia Constitution

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